

Judge Mosbarger – Law & Motion – Wednesday, July 15, 2026 @ 9:00 AM
TENTATIVE RULINGS

1. 22CV00349 BARRETT, MICHELLE V. TURK, WILLIAM D ET AL

EVENT: Motion for Quieting Title

Plaintiff correctly states that “as one cannot obtain judgment for quiet title by default, the Plaintiff will present evidence in an evidentiary hearing scheduled for September 21, 2026 to “prove up” her title to the Property, pursuant to C.C.P. section 764.010.” [See Motion at Page 5, Lines 3-5]. As such, the current Motion is premature and is denied. However, the Court will consider the evidence and argument submitted by Plaintiff in relation to this Motion at the upcoming Court Trial on September 21, 2026 at 8:30 a.m. Plaintiff’s counsel is ordered to provide notice of the previously set Court Trial date to all those entitled to such notice.

2. 22CV01225 SMALLEY, BOB V. CANTERBURY, STEVEN ET AL

EVENT: Order of Examination (Canterbury Cabins, Inc., and Steven Canterbury)

Pursuant to *Code of Civil Procedure* §708.110(d), not less than 30 days prior to the date set for the examination, a copy of the order shall be personally served on the Judgment Debtor. Here, there is no proof of service evidencing such notice. If the Judgment Debtors appear, the Court will swear them in for examination.

3-4. 24CV02790 RIGGINS, KAITLYN V. TRES CHICO LLC

EVENTS: (1) Motion for Final Approval of Class Action Settlement, Class Counsel Fees Payment, Class Counsel Litigation Expenses, and Class Representative Service Payment

(2) Status Conference (Final Review Hearing)

Plaintiff’s Motion for Final Approval of Class Action Settlement, Class Counsel Fees Payment, Class Counsel Litigation Expenses, and Class Representative Service Payment is unopposed and is granted. This matter is set for a compliance hearing on August 18, 2026 at 10:30 a.m. and a compliance status report shall be filed no later than five Court days before the hearing. The Court will sign the form of order submitted by counsel.

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